

complaints, and warranty data. (*Id.* at ¶¶ 51-52.) Plaintiffs allege that VW concealed information about the driver assistance system defect that would have changed Plaintiffs' purchase decision had it been known to Plaintiffs. (*Id.* at ¶ 57.)

However, Plaintiffs merely allege obtaining the Vehicle under a warranty with VW. (Complaint at ¶¶ 10-11.) They do not say anything more than that. Plaintiffs are not clear about how precisely they obtained the Vehicle and so do not state facts supporting a buyer-seller transactional relationship that imposed on VW a duty of disclosure.

Economic Loss and Negligent Repair. Per the above, the economic loss rule prevents "recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Dhital, supra*, 84 Cal.App.5th at p. 837.) Plaintiffs' cause of action for negligent repair states that they took the Vehicle to Dealer for repair but Dealer did not properly store, prepare, and/or repair the Vehicle, causing damages. (Complaint at ¶¶ 61-65.) The complaint does not state that the cause of action is based on a contract between Plaintiffs and Dealer, nor does it show that Plaintiffs suffered only economic loss. The economic loss rule does not bar Plaintiffs' cause of action for negligent repair.

Sufficiency of Pleading Negligent Repair. Plaintiffs' cause of action for negligent repair fails for lack of facts supporting its conclusions. The complaint states only conclusions, without supporting facts, that Dealer did not properly store, prepare, and/or repair the Vehicle.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) The court finds Plaintiffs demonstrate a reasonable possibility that amendment can cure identified defects.

Conclusion. Defendants' motion for judgment on the pleadings is granted with leave to amend.

ROBERT ALLEN ENGLAND vs. BIANCA NICOLE PAPPA
Case No. CU25-11442

Motion to Set Aside Entry of Default

TENTATIVE RULING

Defendant Pappa's motion to set aside the entry of default is granted.

Until statutory requirements for proper service of process are satisfied, the court lacks personal jurisdiction over a defendant. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; *Honda Motor Co. v. Superior Court* (1992) 10 Cal.App.4th 1043, 1048.) “Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (*Dill v. Berquist Constr. Co.* (1994) 24 Cal.App.4th 1426, 1444.)

The summons and complaint may be served by substituted service if they cannot with reasonable diligence be personally delivered to the person to be served by leaving a copy at the person’s dwelling house or usual place of abode in the presence of a competent member of the household who is at least 18 years of age and is informed of their contents and by thereafter mailing a copy to the same address. (Code Civ. Proc. § 415.20(b).) “Substituted service is permissible, however, only after a good faith effort at personal service has first been made: the burden is on the plaintiff to show that the summons and complaint ‘cannot with reasonable diligence be personally delivered’ to the individual defendant.” (*Bd. of Trustees of Leland Stanford Junior Univ. v. Ham* (2013) 216 Cal.App.4th 330, 337, quoting *Am. Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 389.) Two or three attempts at personal service at a proper place should fully satisfy the reasonable diligence requirement. (*Stafford v. Mach* (1998) 64 Cal.App.4th 1174, 1182.)

“When jurisdiction is obtained by a prescribed form of constructive notice, the statutory conditions upon which service depends must be strictly construed; there must be strict compliance with the mode prescribed in the statute.” (*Eagle Elec. Mfg. Co. v. Keener* (1966) 247 Cal.App.2d 246, 250-251.) A requirement of due diligence necessitates a sufficient affidavit or declaration that states evidentiary facts demonstrating the due diligence. (*Id.* at 251.)

The proofs of service do not demonstrate proper service of the summons and complaint on Defendant. The original proof of service, filed on December 16, 2025, indicated that substituted service was made on “Mother of defendant” at Defendant’s home. (Proof of Service (12/16/25).) It did not indicate that copies of the summons and complaint were thereafter mailed to the address. (*Ibid.*) It did not present a declaration of diligence demonstrating any attempts at personal delivery. (*Ibid.*) A second, amended, proof of service was filed on February 10, 2026. (Proof of Service (2/10/26).) This document indicates that a copy of the summons and complaint was eventually mailed to the address where substituted service had been attempted on January 29, 2026. (*Ibid.*) But, the amended proof of service no longer describes how the substituted service had been effected and still fails to include a declaration of diligence. (*Ibid.*)
